

MEDICAID HOME AND COMMUNITY-BASED WAIVER SCOPE OF SERVICES
FOR

PEDIATRIC MEDICAL DAY CARE

A. Objective

The purpose of Pediatric Medical Day Care (PMDC) is to provide physician ordered, comprehensive nursing care services in a licensed day care center to waiver Participants who have medically complex needs in accordance with the Participant's approved Care Coordination Plan.

B. Description of Services to Be Provided

PMDC, which must be provided in accordance with the Treatment Plan, MCC waiver, MCC policy and procedure, SCDHHS policies and procedures and applicable federal and state statutes and regulations, includes the following services:

1. Three meals and at least one snack per day, including formula or enteral nutrition, either provided by the PMDC or the participant's parent or legal guardian.
2. Daily planned therapeutic activities to promote developmentally age-appropriate mental stimulation, communication and self-expression. These activities may include exercises, crafts, music, educational programs, and games, which address cognitive, motor, speech, and emotional needs of children.
3. PMDC services must be coordinated with the participant's waiver care plan, which is under the direction of the RN Care Coordinator and a Treatment Plan must be kept on file, which must include:
 - a. Patient contact information
 - b. History and physical from the child's primary care physician
 - c. Specific medical treatment plan which outlines doctor's orders specific to the child's needs
4. The daily physician prescribed nursing services provided in the PMDC performed by or under the supervision of a registered nurse (RN) as permissible under State law must comply with the MCC Policy and Procedure Manual.
5. When medically necessary, the provider must contact the waiver participant's physician.

C. Staffing

1. The Provider must employ:
 - a. A Nursing Supervisor who:
 - i. Hires qualified personnel,
 - ii. Ensures adequate staff education,
 - iii. Conducts employee evaluations,
 - iv. Has the following qualifications:
 - Is a RN currently licensed by an appropriate licensing authority of the state in which the PMDC is located;
 - Has a minimum of three (3) years of experience in pediatric nursing care or three (3) years of social services experience involving the pediatric population; and
 - Has a minimum of one (1) year administrative or supervisory experience.
 - b. Nurses who:
 - i. Are licensed by the State of South Carolina, or by a state that participates in the Nursing Compact as a RN or Licensed Practical Nurse (LPN);
 - ii. Have two (2) years pediatric experience with medically complex or chronically ill children unless otherwise approved by SCDHHS;
 - iii. Attend all mandatory SCDHHS training programs and adhere to the training requirements; and
 - iv. Provide skilled nursing services within the scope of the respective State Nurse Practice Act.
 - c. Direct Care staff that are:
 - i. RNs, LPNs, Certified Nursing Assistants (CNAs), Nursing Aides, or teaching assistants who:
 - Must be present in a ratio of one (1) for every three (3) participants in the PMDC at any given time.
 - Must have a minimum of one (1) year of pediatric experience or six (6) months of pediatric experience in a hospital setting (other than nurses).

2. There must always be one (1) RN in the PMDC when MCC participants are present. The supervisor may be the one (1) RN required.
3. The PMDC must maintain a ratio of one (1) RN or LPN for every six (6) participants.
4. Should the provider find itself unable to meet the staffing requirements outlined in this section due to vacancies or for any other reason, the provider must notify SCDHHS immediately. Any deviation from the staffing ratios and requirements must be approved in writing by the SCDHHS MCC waiver administrator.
5. All direct care staff must be trained regarding specific or singular needs of the medically complex participants supervised by the RN on staff. Orientation must be accomplished by observing direct hands-on care with specific procedures documented for the employee record.

D. Conditions of Participation

1. The provider must maintain a current day care license through the South Carolina Department of Social Services or their state's respective day care licensing body.
2. The PMDC must be able to accommodate handicapped participants.
3. The PMDC must be equipped with medical equipment appropriate to address the needs of the MCC waiver participants.
4. The provider must participate in the Electronic Visit Verification (EVV) System monitoring and payment system.
 - a. Electronic Visit Verification (EVV) System billing activity must be completed at the time the service is rendered.
 - b. For units of service, the Electronic Visit Verification (EVV) System documentation must be completed immediately upon assuming care of the Participant.
5. The provider shall not delegate administrative and supervisory functions to another agency or organization.
6. The provider shall not enter into any subcontract to provide any services or functions covered under this Contract without prior written approval from SCDHHS.
7. The provider must comply with the South Carolina Child Protection Reform Act (S.C. Code Ann. §63-7-10 et seq., which requires the reporting of any suspected abuse, neglect or exploitation of a child aged 17 and under as defined in the Act or the respective state's

child protection laws.

8. The provider must maintain a business continuity plan, which must be made available to SCDHHS upon request.
9. The provider must maintain a personnel file for each staff member and document that she/he has met all requirements set forth herein.
10. The provider must conduct a SLED criminal background check for all potential employees prior to hire and at least every 2 years thereafter to include employees who will provide direct care to participants and all administrative/office employees. All SLED criminal background checks must include all data for the individual with no less than a ten (10) year timeframe being searched. The SLED criminal background check must include statewide data. The statewide data must include South Carolina and any other state or states the worker has resided in within the prior ten years. Potential employees with felony convictions within the last ten (10) years cannot provide services to participants or work in an administrative/office position. Potential employees with non-violent felonies dating back ten (10) or more years can provide services to participants under the following circumstances;
 - a. Participant/responsible party must be notified of the nurse's SLED criminal background.
 - b. The provider must obtain a written statement, signed by the Participant/responsible party acknowledging awareness of the nurse's SLED criminal background and agreement to have the nurse provide care; this statement must be placed in the Participant record.

Potential administrative/office employees with non-violent felony convictions dating back ten (10) or more years can work in the agency at the discretion of the Provider.

Hiring of employees with misdemeanor convictions will be at the discretion of the Provider.

11. The Provider must verify nurse licensure and license status at the State Board of Nursing website:
<https://verify.llronline.com/LicLookup/Nurse/Nurse.aspx?div=17>
12. A copy of the current license must be maintained in the employee's personnel file.
13. PPD Tuberculin Test

Please refer to the South Carolina Department of Social Services (SCDSS) website Child Care Center Regulation in Section 43-1-

80 and 20-7-2980, et seq. [Licensed Center Regulations \(scchildcare.org\)](https://www.scchildcare.org)

14. All staff employed must hold Basic Life Support Certification, which includes Adult, Infant, and Child CPR with First Aid. Copies of the certification must be maintained at the Pediatric Medical Day Care.

E. Administrative Requirements

1. The provider must maintain current licensure information in each employee's personnel file.
2. The provider shall ensure that key organization staff, including the administrator, are accessible during compliance review audits conducted by SCDHHS and/or its agents.
3. The provider must provide all necessary documentation, data and support, including witness testimony, if required, for the SCDHHS Appeals and Hearings process with respect to appeals of any action involving the Provider within the scope of this Contract.
4. The provider must incorporate in the operation procedures of the PMDC adequate safeguards to the health and safety of the participants in the event of a medical or other emergency.
5. The provider shall notify SCDHHS within three (3) business days in the event of a change in the administrator, the administrator's extended absence or a change in the provider's address, telephone or fax number.
6. SCDHHS shall be given a point of contact for the provider which has legal authority.
7. The provider must develop and maintain a Policy and Procedure Manual that describes how activities must be performed in accordance with the requirements of the Contract. The Policy and Procedure Manual shall be available during office hours and must be made available to SCDHHS upon request.
8. The provider must ensure that its office is staffed by qualified personnel during hours of operation. The provider must also have an emergency contact number for emergencies occurring outside of normal business hours. Participant and personnel records must be maintained at the address indicated in the Contract and must be made available, upon request, for review by SCDHHS or its designee.
9. The provider shall provide SCDHHS with a list of regularly scheduled holidays for the coming calendar year each September. The provider is not required to furnish services on regularly scheduled holidays. The provider must not be closed for more

than two (2) consecutive days, except when a holiday falls in conjunction with a weekend. In that case, the provider may be closed for not more than four (4) consecutive days.

10. The PMDC must be open Monday through Friday at least six (6) hours a day.
11. The provider shall conform to applicable federal, state, and local health and safety rules and regulations, and have an on-going program to prevent the spread of infectious diseases among its employees.
12. The provider must adhere to any other criteria as established by SCDHHS.